



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUN 18 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12294

EXPIRATION DATE: July 15, 1999

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: DPC Industries, Inc.
Houston, TX
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-time transportation in commerce of a DOT specification 4BA cylinder containing Sulfur dioxide. The cylinder has a leak around the valve, which is equipped with a Chlorine Institute Emergency "A" kit capping device. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.34(d) in that a safety relief device is not required.
5. BASIS: This emergency exemption is based on the application of DPC Industries, Inc., dated June 16, 1999, submitted in accordance with § 107.117 and a determination that it is necessary in order to protect life and property.

JUN 18 1999

Continuation DOT-E 12294

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Sulfur dioxide, liquefied	2.3 Hazard Zone C	UN1079	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT specification 4BA cylinder which has a leak around the valve. The cylinder is equipped with Chlorine Institute Emergency "A" kit. The emergency kit must prevent leakage during transportation.

b. OPERATIONAL CONTROLS -

(1) The cylinder will be transported from the DPC Industries, Inc. facility in Omaha, Nebraska to the DPC Industries, Inc. facility in Hudson, Colorado.

(2) The cylinder must be transported by a vehicle owned by DPC Industries or by a contract carrier. The shipment must be accompanied by personnel trained in how to proceed in the event an emergency.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at the facility where the package is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

JUN 18 1999

Continuation DOT-E 12294

Page 3

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

JUN 18 1999

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

Dist: FHWA
PO: am